



General Assembly

February Session, 2026

Raised Bill No. 5348

LCO No. 2140



Referred to Committee on GOVERNMENT ADMINISTRATION
AND ELECTIONS

Introduced by:
(GAE)

***AN ACT REQUIRING NOTIFICATION TO THE LEGISLATIVE LEADERS
OF THE PROPOSED ADOPTION OF AGENCY REGULATIONS AND
THE STATE BUILDING AND FIRE CODES.***

Be it enacted by the Senate and House of Representatives in General
Assembly convened:

1 Section 1. Subsection (a) of section 4-168 of the general statutes is
2 repealed and the following is substituted in lieu thereof (*Effective October*
3 *1, 2026, and applicable to regulations noticed on and after said date*):

4 (a) Except as provided in subsections (g) and (h) of this section, an
5 agency, not less than thirty days prior to adopting a proposed
6 regulation, shall (1) post a notice of its intended action on the
7 eRegulations System, which notice shall include (A) a specified public
8 comment period of not less than thirty days, (B) a description
9 sufficiently detailed so as to apprise persons likely to be affected of the
10 issues and subjects involved in the proposed regulation, (C) a statement
11 of the purposes for which the regulation is proposed, (D) a reference to
12 the statutory authority for the proposed regulation, (E) when, where
13 and how interested persons may obtain a copy of the small business
14 impact and regulatory flexibility analysis required pursuant to section

15 4-168a, and (F) when, where and how interested persons may present
 16 their views on the proposed regulation; (2) post a copy of the proposed
 17 regulation on the eRegulations System; (3) give notice electronically to
 18 each joint standing committee of the General Assembly having
 19 cognizance of the subject matter of the proposed regulation, the speaker
 20 of the House of Representatives, the president pro tempore of the Senate
 21 and the majority and minority leaders of the House and Senate; (4) prior
 22 to January 1, 2017, give notice electronically or provide a paper copy
 23 notice, if requested, to all persons who have made requests to the agency
 24 for advance notice of its regulation-making proceedings; (5) provide a
 25 paper copy or electronic version of the proposed regulation to persons
 26 requesting it; and (6) prepare a fiscal note, including an estimate of the
 27 cost or of the revenue impact (A) on the state or any municipality of the
 28 state, and (B) on small businesses in the state, including an estimate of
 29 the number of small businesses subject to the proposed regulation and
 30 the projected costs, including, but not limited to, reporting,
 31 recordkeeping and administrative, associated with compliance with the
 32 proposed regulation and, if applicable, the regulatory flexibility analysis
 33 prepared under section 4-168a. The governing body of any
 34 municipality, if requested, shall provide the agency, within twenty
 35 working days, with any information that may be necessary for analysis
 36 in preparation of such fiscal note. On and after January 1, 2017, each
 37 such agency shall mail a paper copy of the notice posted pursuant to
 38 subdivision (1) of this subsection, not later than five days after posting
 39 such notice, to any person who has requested advance notice of the
 40 agency's regulation-making proceedings on or after October 1, 2016.

41 Sec. 2. Subsection (c) of section 29-252b of the general statutes is
 42 repealed and the following is substituted in lieu thereof (*Effective October*
 43 *1, 2026, and applicable to any code noticed on and after said date*):

44 (c) Prior to the adoption of the State Building Code and any
 45 amendments thereto, the State Building Inspector shall (1) post any
 46 proposed code, a statement of purpose for which the proposed code is
 47 proposed, a fiscal note associated with compliance with the proposed

48 code prepared pursuant to section 4-168, as amended by this act, and a
 49 regulatory flexibility analysis prepared pursuant to section 4-168a on
 50 the Internet web site of the Department of Administrative Services, (2)
 51 give notice electronically to the joint standing committee of the General
 52 Assembly having cognizance of matters relating to public safety and
 53 security, the speaker of the House of Representatives, the president pro
 54 tempore of the Senate and the majority and minority leaders of the
 55 House and Senate, (3) give notice to any person who has requested the
 56 State Building Inspector for advance notice of its proposed code
 57 adoption proceedings, (4) provide for a public comment period of forty-
 58 five days following the posting of such proposed code, fiscal note and
 59 regulatory flexibility analysis, and (5) hold a public hearing on the
 60 proposed code not less than twenty nor more than thirty-five days after
 61 such posting.

62 Sec. 3. Subsection (c) of section 29-291e of the general statutes is
 63 repealed and the following is substituted in lieu thereof (*Effective October*
 64 *1, 2026, and applicable to any code noticed on and after said date*):

65 (c) Prior to the adoption of the State Fire Prevention Code and any
 66 amendments thereto, the State Fire Marshal shall (1) post any proposed
 67 code, a statement of purpose for which the proposed code is proposed,
 68 a fiscal note associated with compliance with the proposed code
 69 prepared pursuant to section 4-168, as amended by this act, and a
 70 regulatory flexibility analysis prepared pursuant to section 4-168a on
 71 the Internet web site of the Department of Administrative Services, (2)
 72 give notice electronically to the joint standing committee of the General
 73 Assembly having cognizance of matters relating to public safety and
 74 security, the speaker of the House of Representatives, the president pro
 75 tempore of the Senate and the majority and minority leaders of the
 76 House and Senate, (3) give notice to any person who has requested the
 77 State Fire Marshal for advance notice of the proposed code adoption
 78 proceedings, (4) provide for a public comment period of forty-five days
 79 following the posting of such proposed code, fiscal note and regulatory
 80 flexibility analysis, and (5) hold a public hearing on the proposed code

81 not less than twenty nor more than thirty-five days after such posting.

82 Sec. 4. Subsection (c) of section 29-292a of the general statutes is
 83 repealed and the following is substituted in lieu thereof (*Effective October*
 84 *1, 2026, and applicable to any code noticed on and after said date*):

85 (c) Prior to the adoption of the Fire Safety Code and any amendments
 86 thereto, the State Fire Marshal shall (1) post any proposed code, a
 87 statement of purpose for which the proposed code is proposed, a fiscal
 88 note associated with compliance with the proposed code prepared
 89 pursuant to section 4-168, as amended by this act, and a regulatory
 90 flexibility analysis prepared pursuant to section 4-168a on the Internet
 91 web site of the Department of Administrative Services, (2) give notice
 92 electronically to the joint standing committee of the General Assembly
 93 having cognizance of matters relating to public safety and security, the
 94 speaker of the House of Representatives, the president pro tempore of
 95 the Senate and the majority and minority leaders of the House and
 96 Senate, (3) give notice to any person who has requested the State Fire
 97 Marshal for advance notice of the proposed code adoption proceedings,
 98 (4) provide for a public comment period of forty-five days following the
 99 posting of such proposed code, fiscal note and regulatory flexibility
 100 analysis, and (5) hold a public hearing on the proposed code not less
 101 than twenty nor more than thirty-five days after such posting.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026, and applicable to regulations noticed on and after said date</i>	4-168(a)
Sec. 2	<i>October 1, 2026, and applicable to any code noticed on and after said date</i>	29-252b(c)

Sec. 3	<i>October 1, 2026, and applicable to any code noticed on and after said date</i>	29-291e(c)
Sec. 4	<i>October 1, 2026, and applicable to any code noticed on and after said date</i>	29-292a(c)

Statement of Purpose:

To require state agencies to provide electronic notification to the legislative leaders when they begin the process of adopting regulations, the State Building Code, Fire Prevention Code and Fire Safety Code.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]